Reply to Objection 1: As the father of a family issues different commands to the children and to the adults, so also the one King, God, in His one kingdom, gave one law to men, while they were yet imperfect, and another more perfect law, when, by the preceding law, they had been led to a greater capacity for Divine things.

Reply to Objection 2: The salvation of man could not be achieved otherwise than through Christ, according to Acts 4:12: "There is no other name . . . given to men, whereby we must be saved." Consequently the law that brings all to salvation could not be given until after the coming of Christ. But before His coming it was necessary to give to the people, of whom Christ was to be born, a law containing certain rudiments of righteousness unto salvation, in order to prepare them to receive Him.

Reply to Objection 3: The natural law directs man by way of certain general precepts, common to both the perfect and the imperfect: wherefore it is one and the same for all. But the Divine law directs man also in certain particular matters, to which the perfect and imperfect do not stand in the same relation. Hence the necessity for the Divine law to be twofold, as already explained.

Whether there is a law in the fomes of sin?

Objection 1: It would seem that there is no law of the "fomes" of sin. For Isidore says (Etym. v) that the "law is based on reason." But the "fomes" of sin is not based on reason, but deviates from it. Therefore the "fomes" has not the nature of a law.

Objection 2: Further, every law is binding, so that those who do not obey it are called transgressors. But man is not called a transgressor, from not following the instigations of the "fomes"; but rather from his following them. Therefore the "fomes" has not the nature of a law.

Objection 3: Further, the law is ordained to the common good, as stated above (Q[90], A[2]). But the "fomes" inclines us, not to the common, but to our own private good. Therefore the "fomes" has not the nature of sin.

On the contrary, The Apostle says (Rom. 7:23): "I see another law in my members, fighting against the law of my mind."

I answer that, As stated above (A[2]; Q[90], A[1], ad 1), the law, as to its essence, resides in him that rules and measures; but, by way of participation, in that which is ruled and measured; so that every inclination or ordination which may be found in things subject to the law, is called a law by participation, as stated above (A[2]; Q[90], A[1] , ad 1). Now those who are subject to a law may receive a twofold inclination from the lawgiver. First, in so far as he directly inclines his subjects to something; sometimes indeed different subjects to different acts; in this way we may say that there is a military law and a mercantile law. Secondly, indirectly; thus by the very fact that a lawgiver deprives a subject of some dignity, the latter passes into another order, so as to be under another law, as it were: thus if a soldier be turned out of the army, he becomes a subject of rural or of mercantile legislation.

Accordingly under the Divine Lawgiver various creatures have various natural inclinations, so that what is, as it were, a law for one, is against the law for another: thus I might say that fierceness is, in a way, the law of a dog, but against the law of a sheep or another meek animal. And so the law of man, which, by the Divine ordinance, is allotted to him, according to his proper natural condition, is that he should act in accordance with reason: and this law was so effective in the

primitive state, that nothing either beside or against reason could take man unawares. But when man turned his back on God, he fell under the influence of his sensual impulses: in fact this happens to each one individually, the more he deviates from the path of reason, so that, after a fashion, he is likened to the beasts that are led by the impulse of sensuality, according to Ps. 48:21: "Man, when he was in honor, did not understand: he hath been compared to senseless beasts, and made like to them."

So, then, this very inclination of sensuality which is called the "fomes," in other animals has simply the nature of a law (yet only in so far as a law may be said to be in such things), by reason of a direct inclination. But in man, it has not the nature of law in this way, rather is it a deviation from the law of reason. But since, by the just sentence of God, man is destitute of original justice, and his reason bereft of its vigor, this impulse of sensuality, whereby he is led, in so far as it is a penalty following from the Divine law depriving man of his proper dignity, has the nature of a law.

Reply to Objection 1: This argument considers the "fomes" in itself, as an incentive to evil. It is not thus that it has the nature of a law, as stated above, but according as it results from the justice of the Divine law: it is as though we were to say that the law allows a nobleman to be condemned to hard labor for some misdeed.

Reply to Objection 2: This argument considers law in the light of a rule or measure: for it is in this sense that those who deviate from the law become transgressors. But the "fomes" is not a law in this respect, but by a kind of participation, as stated above.

Reply to Objection 3: This argument considers the "fomes" as to its proper inclination, and not as to its origin. And yet if the inclination of sensuality be considered as it is in other animals, thus it is ordained to the common good, namely, to the preservation of nature in the species or in the individual. And this is in man also, in so far as sensuality is subject to reason. But it is called "fomes" in so far as it strays from the order of reason.

OF THE EFFECTS OF LAW (TWO ARTICLES)

We must now consider the effects of law; under which head there are two points of inquiry:

(1) Whether an effect of law is to make men good?

(2) Whether the effects of law are to command, to forbid, to permit, and to punish, as the Jurist states?

Whether an effect of law is to make men good?

Objection 1: It seems that it is not an effect of law to make men good. For men are good through virtue, since virtue, as stated in Ethic. ii, 6 is "that which makes its subject good." But virtue is in man from God alone, because He it is Who "works it in us without us," as we stated above (Q[55], A[4]) in giving the definition of virtue. Therefore the law does not make men good.

Objection 2: Further, Law does not profit a man unless he obeys it. But the very fact that a man obeys a law is due to his being good. Therefore in man goodness is presupposed to the law. Therefore the law does not make men good.

Objection 3: Further, Law is ordained to the common good, as stated above (Q[90], A[2]). But some behave well in things regarding the community, who behave ill in things regarding themselves. Therefore it is not the business of the law to make men good.

Objection 4: Further, some laws are tyrannical, as the Philosopher says (Polit. iii, 6). But a tyrant does not intend the good of his subjects, but considers only his own profit. Therefore law does not make men good.

On the contrary, The Philosopher says (Ethic. ii, 1) that the "intention of every lawgiver is to make good citizens."

I answer that, as stated above (Q[90], A[1], ad 2; AA[3],4), a law is nothing else than a dictate of reason in the ruler by whom his subjects are governed. Now the virtue of any subordinate thing consists in its being well subordinated to that by which it is regulated: thus we see that the virtue of the irascible and concupiscible faculties consists in their being obedient to reason; and accordingly "the virtue of every subject consists in his being well subjected to his ruler," as the Philosopher says (Polit. i). But every law aims at being obeyed by those who are subject to it. Consequently it is evident that the proper effect of law is to lead its subjects to their proper virtue: and since virtue is "that which makes its subject good," it follows that the proper effect of law is to make those to whom it is given, good, either simply or in some particular respect. For if the intention of the lawgiver is fixed on true good, which is the common good regulated according to Divine justice, it follows that the effect of the law is to make men good simply. If, however, the intention of the lawgiver is fixed on that which is not simply good, but useful or pleasurable to himself, or in opposition to Divine justice; then the law does not make men good simply, but in respect to that particular government. In this way good is found even in things that are bad of themselves: thus a man is called a good robber, because he works in a way that is adapted to his end.

Reply to Objection 1: Virtue is twofold, as explained above (Q[63], A[2]), viz. acquired and infused. Now the fact of being accustomed to an action contributes to both, but in different ways; for it causes the acquired virtue; while it disposes to infused virtue, and preserves and fosters it when it already exists. And since law is given for the purpose of directing human acts; as far as human acts conduce to virtue, so far does law make men good. Wherefore the Philosopher says in the second book of the Politics (Ethic. ii) that "lawgivers make men good by habituating them to good works."

Reply to Objection 2: It is not always through perfect goodness of virtue that one obeys the law, but sometimes it is through fear of punishment, and sometimes from the mere dictates of reason, which is a beginning of virtue, as stated above (Q[63], A[1]).

Reply to Objection 3: The goodness of any part is considered in comparison with the whole; hence Augustine says (Confess. iii) that "unseemly is the part that harmonizes not with the whole." Since then every man is a part of the state, it is impossible that a man be good, unless he be well proportionate to the common good: nor can the whole be well consistent unless its parts be proportionate to it. Consequently the common good of the state cannot flourish, unless the citizens be virtuous, at least those whose business it is to govern. But it is enough for the good of the community, that the other citizens be so far virtuous that they obey the commands of their rulers. Hence the Philosopher says (Polit. ii, 2) that "the virtue of a sovereign is the same as that of a good man, but the virtue of any common citizen is not the same as that of a good man."

Reply to Objection 4: A tyrannical law, through not being according to reason, is not a law, absolutely speaking, but rather a perversion of law; and yet in so far as it is something in the nature

of a law, it aims at the citizens' being good. For all it has in the nature of a law consists in its being an ordinance made by a superior to his subjects, and aims at being obeyed by them, which is to make them good, not simply, but with respect to that particular government.

Whether the acts of law are suitably assigned?

Objection 1: It would seem that the acts of law are not suitably assigned as consisting in "command," "prohibition," "permission" and "punishment." For "every law is a general precept," as the jurist states. But command and precept are the same. Therefore the other three are superfluous.

Objection 2: Further, the effect of a law is to induce its subjects to be good, as stated above (A[1]). But counsel aims at a higher good than a command does. Therefore it belongs to law to counsel rather than to command.

Objection 3: Further, just as punishment stirs a man to good deeds, so does reward. Therefore if to punish is reckoned an effect of law, so also is to reward.

Objection 4: Further, the intention of a lawgiver is to make men good, as stated above (A[1]). But he that obeys the law, merely through fear of being punished, is not good: because "although a good deed may be done through servile fear, i.e. fear of punishment, it is not done well," as Augustine says (Contra duas Epist. Pelag. ii). Therefore punishment is not a proper effect of law.

On the contrary, Isidore says (Etym. v, 19): "Every law either permits something, as: 'A brave man may demand his reward'": or forbids something, as: "No man may ask a consecrated virgin in marriage": or punishes, as: "Let him that commits a murder be put to death."

I answer that, Just as an assertion is a dictate of reason asserting something, so is a law a dictate of reason, commanding something. Now it is proper to reason to lead from one thing to another. Wherefore just as, in demonstrative sciences, the reason leads us from certain principles to assent to the conclusion, so it induces us by some means to assent to the precept of the law.

Now the precepts of law are concerned with human acts, in which the law directs, as stated above (Q[90], AA[1],2; Q[91], A[4]). Again there are three kinds of human acts: for, as stated above (Q[18], A[8]), some acts are good generically, viz. acts of virtue; and in respect of these the act of the law is a precept or command, for "the law commands all acts of virtue" (Ethic. v, 1). Some acts are evil generically, viz. acts of vice, and in respect of these the law forbids. Some acts are generically indifferent, and in respect of these the law permits; and all acts that are either not distinctly good or not distinctly bad may be called indifferent. And it is the fear of punishment that law makes use of in order to ensure obedience: in which respect punishment is an effect of law.

Reply to Objection 1: Just as to cease from evil is a kind of good, so a prohibition is a kind of precept: and accordingly, taking precept in a wide sense, every law is a kind of precept.

Reply to Objection 2: To advise is not a proper act of law, but may be within the competency even of a private person, who cannot make a law. Wherefore too the Apostle, after giving a certain counsel (1 Cor. 7:12) says: "I speak, not the Lord." Consequently it is not reckoned as an effect of law.

Reply to Objection 3: To reward may also pertain to anyone: but to punish pertains to none but the framer of the law, by whose authority the pain is inflicted. Wherefore to reward is not reckoned an effect of law, but only to punish.

Reply to Objection 4: From becoming accustomed to avoid evil and fulfill what is good, through fear of punishment, one is sometimes led on to do so likewise, with delight and of one's own accord. Accordingly, law, even by punishing, leads men on to being good.

OF THE ETERNAL LAW (SIX ARTICLES)

We must now consider each law by itself; and (1) The eternal law; (2) The natural law; (3) The human law; (4) The old law; (5) The new law, which is the law of the Gospel. Of the sixth law which is the law of the "fomes," suffice what we have said when treating of original sin.

Concerning the first there are six points of inquiry:

(1) What is the eternal law?

(2) Whether it is known to all?

(3) Whether every law is derived from it?

(4) Whether necessary things are subject to the eternal law?

(5) Whether natural contingencies are subject to the eternal law?

(6) Whether all human things are subject to it?

Whether the eternal law is a sovereign type [*Ratio] existing in God?

Objection 1: It would seem that the eternal law is not a sovereign type existing in God. For there is only one eternal law. But there are many types of things in the Divine mind; for Augustine says (Qq. lxxxiii, qu. 46) that God "made each thing according to its type." Therefore the eternal law does not seem to be a type existing in the Divine mind.

Objection 2: Further, it is essential to a law that it be promulgated by word, as stated above (Q[90], A[4]). But Word is a Personal name in God, as stated in the FP, Q[34], A[1]: whereas type refers to the Essence. Therefore the eternal law is not the same as a Divine type.

Objection 3: Further, Augustine says (De Vera Relig. xxx): "We see a law above our minds, which is called truth." But the law which is above our minds is the eternal law. Therefore truth is the eternal law. But the idea of truth is not the same as the idea of a type. Therefore the eternal law is not the same as the sovereign type.

On the contrary, Augustine says (De Lib. Arb. i, 6) that "the eternal law is the sovereign type, to which we must always conform."

I answer that, Just as in every artificer there pre-exists a type of the things that are made by his art, so too in every governor there must pre-exist the type of the order of those things that are to be done by those who are subject to his government. And just as the type of the things yet to be made by an art is called the art or exemplar of the products of that art, so too the type in him who governs the acts of his subjects, bears the character of a law, provided the other conditions be present which we have mentioned above (Q[90]). Now God, by His wisdom, is the Creator of all things in relation to which He stands as the artificer to the products of his art, as stated in the FP, Q[14], A[8]. Moreover He governs all the acts and movements that are to be found in each single creature, as was also stated in the FP, Q[103], A[5]. Wherefore as the type of the Divine Wisdom, inasmuch as by It all things are created, has the character of art, exemplar or idea; so the type of

Divine Wisdom, as moving all things to their due end, bears the character of law. Accordingly the eternal law is nothing else than the type of Divine Wisdom, as directing all actions and movements.

Reply to Objection 1: Augustine is speaking in that passage of the ideal types which regard the proper nature of each single thing; and consequently in them there is a certain distinction and plurality, according to their different relations to things, as stated in the FP, Q[15], A[2]. But law is said to direct human acts by ordaining them to the common good, as stated above (Q[90], A[2]). And things, which are in themselves different, may be considered as one, according as they are ordained to one common thing. Wherefore the eternal law is one since it is the type of this order.

Reply to Objection 2: With regard to any sort of word, two points may be considered: viz. the word itself, and that which is expressed by the word. For the spoken word is something uttered by the mouth of man, and expresses that which is signified by the human word. The same applies to the human mental word, which is nothing else that something conceived by the mind, by which man expresses his thoughts mentally. So then in God the Word conceived by the intellect of the Father is the name of a Person: but all things that are in the Father's knowledge, whether they refer to the Essence or to the Persons, or to the works of God, are expressed by this Word, as Augustine declares (De Trin. xv, 14). And among other things expressed by this Word, the eternal law itself is expressed thereby. Nor does it follow that the eternal law is a Personal name in God: yet it is appropriated to the Son, on account of the kinship between type and word.

Reply to Objection 3: The types of the Divine intellect do not stand in the same relation to things, as the types of the human intellect. For the human intellect is measured by things, so that a human concept is not true by reason of itself, but by reason of its being consonant with things, since "an opinion is true or false according as it answers to the reality." But the Divine intellect is the measure of things: since each thing has so far truth in it, as it represents the Divine intellect, as was stated in the FP, Q[16], A[1]. Consequently the Divine intellect is true in itself; and its type is truth itself.

Whether the eternal law is known to all?

Objection 1: It would seem that the eternal law is not known to all. Because, as the Apostle says (1 Cor. 2:11), "the things that are of God no man knoweth, but the Spirit of God." But the eternal law is a type existing in the Divine mind. Therefore it is unknown to all save God alone.

Objection 2: Further, as Augustine says (De Lib. Arb. i, 6) "the eternal law is that by which it is right that all things should be most orderly." But all do not know how all things are most orderly. Therefore all do not know the eternal law.

Objection 3: Further, Augustine says (De Vera Relig. xxxi) that "the eternal law is not subject to the judgment of man." But according to Ethic. i, "any man can judge well of what he knows." Therefore the eternal law is not known to us.

On the contrary, Augustine says (De Lib. Arb. i, 6) that "knowledge of the eternal law is imprinted on us."

I answer that, A thing may be known in two ways: first, in itself; secondly, in its effect, wherein some likeness of that thing is found: thus someone not seeing the sun in its substance, may know it by its rays. So then no one can know the eternal law, as it is in itself, except the blessed who see God in His Essence. But every rational creature knows it in its reflection, greater or less. For every

knowledge of truth is a kind of reflection and participation of the eternal law, which is the unchangeable truth, as Augustine says (De Vera Relig. xxxi). Now all men know the truth to a certain extent, at least as to the common principles of the natural law: and as to the others, they partake of the knowledge of truth, some more, some less; and in this respect are more or less cognizant of the eternal law.

Reply to Objection 1: We cannot know the things that are of God, as they are in themselves; but they are made known to us in their effects, according to Rom. 1:20: "The invisible things of God . . . are clearly seen, being understood by the things that are made."

Reply to Objection 2: Although each one knows the eternal law according to his own capacity, in the way explained above, yet none can comprehend it: for it cannot be made perfectly known by its effects. Therefore it does not follow that anyone who knows the eternal law in the way aforesaid, knows also the whole order of things, whereby they are most orderly.

Reply to Objection 3: To judge a thing may be understood in two ways. First, as when a cognitive power judges of its proper object, according to Job 12:11: "Doth not the ear discern words, and the palate of him that eateth, the taste?" It is to this kind of judgment that the Philosopher alludes when he says that "anyone can judge well of what he knows," by judging, namely, whether what is put forward is true. In another way we speak of a superior judging of a subordinate by a kind of practical judgment, as to whether he should be such and such or not. And thus none can judge of the eternal law.

Whether every law is derived from the eternal law?

Objection 1: It would seem that not every law is derived from the eternal law. For there is a law of the "fomes," as stated above (Q[91], A[6]), which is not derived from that Divine law which is the eternal law, since thereunto pertains the "prudence of the flesh," of which the Apostle says (Rom. 8:7), that "it cannot be subject to the law of God." Therefore not every law is derived from the eternal law.

Objection 2: Further, nothing unjust can be derived from the eternal law, because, as stated above (A[2], OBJ[2]), "the eternal law is that, according to which it is right that all things should be most orderly." But some laws are unjust, according to Is. 10:1: "Woe to them that make wicked laws." Therefore not every law is derived from the eternal law.

Objection 3: Further, Augustine says (De Lib. Arb. i, 5) that "the law which is framed for ruling the people, rightly permits many things which are punished by Divine providence." But the type of Divine providence is the eternal law, as stated above (A[1]). Therefore not even every good law is derived from the eternal law.

On the contrary, Divine Wisdom says (Prov. 8:15): "By Me kings reign, and lawgivers decree just things." But the type of Divine Wisdom is the eternal law, as stated above (A[1]). Therefore all laws proceed from the eternal law.

I answer that, As stated above (Q[90], AA[1],2), the law denotes a kind of plan directing acts towards an end. Now wherever there are movers ordained to one another, the power of the second mover must needs be derived from the power of the first mover; since the second mover does not move except in so far as it is moved by the first. Wherefore we observe the same in all those who govern, so that the plan of government is derived by secondary governors from the governor in

chief; thus the plan of what is to be done in a state flows from the king's command to his inferior administrators: and again in things of art the plan of whatever is to be done by art flows from the chief craftsman to the under-crafts-men, who work with their hands. Since then the eternal law is the plan of government in the Chief Governor, all the plans of government in the inferior governors must be derived from the eternal law. But these plans of inferior governors are all other laws besides the eternal law. Therefore all laws, in so far as they partake of right reason, are derived from the eternal law. Hence Augustine says (De Lib. Arb. i, 6) that "in temporal law there is nothing just and lawful, but what man has drawn from the eternal law."

Reply to Objection 1: The "fomes" has the nature of law in man, in so far as it is a punishment resulting from Divine justice; and in this respect it is evident that it is derived from the eternal law. But in so far as it denotes a proneness to sin, it is contrary to the Divine law, and has not the nature of law, as stated above (Q[91], A[6]).

Reply to Objection 2: Human law has the nature of law in so far as it partakes of right reason; and it is clear that, in this respect, it is derived from the eternal law. But in so far as it deviates from reason, it is called an unjust law, and has the nature, not of law but of violence. Nevertheless even an unjust law, in so far as it retains some appearance of law, though being framed by one who is in power, is derived from the eternal law; since all power is from the Lord God, according to Rom. 13:1.

Reply to Objection 3: Human law is said to permit certain things, not as approving them, but as being unable to direct them. And many things are directed by the Divine law, which human law is unable to direct, because more things are subject to a higher than to a lower cause. Hence the very fact that human law does not meddle with matters it cannot direct, comes under the ordination of the eternal law. It would be different, were human law to sanction what the eternal law condemns. Consequently it does not follow that human law is not derived from the eternal law, but that it is not on a perfect equality with it.

Whether necessary and eternal things are subject to the eternal law?

Objection 1: It would seem that necessary and eternal things are subject to the eternal law. For whatever is reasonable is subject to reason. But the Divine will is reasonable, for it is just. Therefore it is subject to (the Divine) reason. But the eternal law is the Divine reason. Therefore God's will is subject to the eternal law. But God's will is eternal. Therefore eternal and necessary things are subject to the eternal law.

Objection 2: Further, whatever is subject to the King, is subject to the King's law. Now the Son, according to 1 Cor. 15:28,24, "shall be subject . . . to God and the Father . . . when He shall have delivered up the Kingdom to Him." Therefore the Son, Who is eternal, is subject to the eternal law.

Objection 3: Further, the eternal law is Divine providence as a type. But many necessary things are subject to Divine providence: for instance, the stability of incorporeal substances and of the heavenly bodies. Therefore even necessary things are subject to the eternal law.

On the contrary, Things that are necessary cannot be otherwise, and consequently need no restraining. But laws are imposed on men, in order to restrain them from evil, as explained above (Q[92], A[2]). Therefore necessary things are not subject to the eternal law.

I answer that, As stated above (A[1]), the eternal law is the type of the Divine government. Consequently whatever is subject to the Divine government, is subject to the eternal law: while if anything is not subject to the Divine government, neither is it subject to the eternal law. The application of this distinction may be gathered by looking around us. For those things are subject to human government, which can be done by man; but what pertains to the nature of man is not subject to human government; for instance, that he should have a soul, hands, or feet. Accordingly all that is in things created by God, whether it be contingent or necessary, is subject to the eternal law: while things pertaining to the Divine Nature or Essence are not subject to the eternal law, but are the eternal law itself.

Reply to Objection 1: We may speak of God's will in two ways. First, as to the will itself: and thus, since God's will is His very Essence, it is subject neither to the Divine government, nor to the eternal law, but is the same thing as the eternal law. Secondly, we may speak of God's will, as to the things themselves that God wills about creatures; which things are subject to the eternal law, in so far as they are planned by Divine Wisdom. In reference to these things God's will is said to be reasonable [rationalis]: though regarded in itself it should rather be called their type [ratio].

Reply to Objection 2: God the Son was not made by God, but was naturally born of God. Consequently He is not subject to Divine providence or to the eternal law: but rather is Himself the eternal law by a kind of appropriation, as Augustine explains (De Vera Relig. xxxi). But He is said to be subject to the Father by reason of His human nature, in respect of which also the Father is said to be greater than He.

The third objection we grant, because it deals with those necessary things that are created.

Reply to Objection 4: As the Philosopher says (Metaph. v, text. 6), some necessary things have a cause of their necessity: and thus they derive from something else the fact that they cannot be otherwise. And this is in itself a most effective restraint; for whatever is restrained, is said to be restrained in so far as it cannot do otherwise than it is allowed to.

Whether natural contingents are subject to the eternal law?

Objection 1: It would seem that natural contingents are not subject to the eternal law. Because promulgation is essential to law, as stated above (Q[90], A[4]). But a law cannot be promulgated except to rational creatures, to whom it is possible to make an announcement. Therefore none but rational creatures are subject to the eternal law; and consequently natural contingents are not.

Objection 2: Further, "Whatever obeys reason partakes somewhat of reason," as stated in Ethic. i. But the eternal law, is the supreme type, as stated above (A[1]). Since then natural contingents do not partake of reason in any way, but are altogether void of reason, it seems that they are not subject to the eternal law.

Objection 3: Further, the eternal law is most efficient. But in natural contingents defects occur. Therefore they are not subject to the eternal law.

On the contrary, It is written (Prov. 8:29): "When He compassed the sea with its bounds, and set a law to the waters, that they should not pass their limits."

I answer that, We must speak otherwise of the law of man, than of the eternal law which is the law of God. For the law of man extends only to rational creatures subject to man. The reason of this is because law directs the actions of those that are subject to the government of someone:

wherefore, properly speaking, none imposes a law on his own actions. Now whatever is done regarding the use of irrational things subject to man, is done by the act of man himself moving those things, for these irrational creatures do not move themselves, but are moved by others, as stated above (Q[1], A[2]). Consequently man cannot impose laws on irrational beings, however much they may be subject to him. But he can impose laws on rational beings subject to him, in so far as by his command or pronouncement of any kind, he imprints on their minds a rule which is a principle of action.

Now just as man, by such pronouncement, impresses a kind of inward principle of action on the man that is subject to him, so God imprints on the whole of nature the principles of its proper actions. And so, in this way, God is said to command the whole of nature, according to Ps. 148:6: "He hath made a decree, and it shall not pass away." And thus all actions and movements of the whole of nature are subject to the eternal law. Consequently irrational creatures are subject to the eternal law, through being moved by Divine providence; but not, as rational creatures are, through understanding the Divine commandment.

Reply to Objection 1: The impression of an inward active principle is to natural things, what the promulgation of law is to men: because law, by being promulgated, imprints on man a directive principle of human actions, as stated above.

Reply to Objection 2: Irrational creatures neither partake of nor are obedient to human reason: whereas they do partake of the Divine Reason by obeying it; because the power of Divine Reason extends over more things than human reason does. And as the members of the human body are moved at the command of reason, and yet do not partake of reason, since they have no apprehension subordinate to reason; so too irrational creatures are moved by God, without, on that account, being rational.

Reply to Objection 3: Although the defects which occur in natural things are outside the order of particular causes, they are not outside the order of universal causes, especially of the First Cause, i.e. God, from Whose providence nothing can escape, as stated in the FP, Q[22], A[2]. And since the eternal law is the type of Divine providence, as stated above (A[1]), hence the defects of natural things are subject to the eternal law.

Whether all human affairs are subject to the eternal law?

Objection 1: It would seem that not all human affairs are subject to the eternal law. For the Apostle says (Gal. 5:18): "If you are led by the spirit you are not under the law." But the righteous who are the sons of God by adoption, are led by the spirit of God, according to Rom. 8:14: "Whosoever are led by the spirit of God, they are the sons of God." Therefore not all men are under the eternal law.

Objection 2: Further, the Apostle says (Rom. 8:7): "The prudence [Vulg.: 'wisdom'] of the flesh is an enemy to God: for it is not subject to the law of God." But many are those in whom the prudence of the flesh dominates. Therefore all men are not subject to the eternal law which is the law of God.

Objection 3: Further, Augustine says (De Lib. Arb. i, 6) that "the eternal law is that by which the wicked deserve misery, the good, a life of blessedness." But those who are already blessed, and

those who are already lost, are not in the state of merit. Therefore they are not under the eternal law.

On the contrary, Augustine says (De Civ. Dei xix, 12): "Nothing evades the laws of the most high Creator and Governor, for by Him the peace of the universe is administered."

I answer that, There are two ways in which a thing is subject to the eternal law, as explained above (A[5]): first, by partaking of the eternal law by way of knowledge; secondly, by way of action and passion, i.e. by partaking of the eternal law by way of an inward motive principle: and in this second way, irrational creatures are subject to the eternal law, as stated above (A[5]). But since the rational nature, together with that which it has in common with all creatures, has something proper to itself inasmuch as it is rational, consequently it is subject to the eternal law in both ways; because while each rational creature has some knowledge of the eternal law, as stated above (A[2]), it also has a natural inclination to that which is in harmony with the eternal law; for "we are naturally adapted to the recipients of virtue" (Ethic. ii, 1).

Both ways, however, are imperfect, and to a certain extent destroyed, in the wicked; because in them the natural inclination to virtue is corrupted by vicious habits, and, moreover, the natural knowledge of good is darkened by passions and habits of sin. But in the good both ways are found more perfect: because in them, besides the natural knowledge of good, there is the added knowledge of faith and wisdom; and again, besides the natural inclination to good, there is the added motive of grace and virtue.

Accordingly, the good are perfectly subject to the eternal law, as always acting according to it: whereas the wicked are subject to the eternal law, imperfectly as to their actions, indeed, since both their knowledge of good, and their inclination thereto, are imperfect; but this imperfection on the part of action is supplied on the part of passion, in so far as they suffer what the eternal law decrees concerning them, according as they fail to act in harmony with that law. Hence Augustine says (De Lib. Arb. i, 15): "I esteem that the righteous act according to the eternal law; and (De Catech. Rud. xviii): Out of the just misery of the souls which deserted Him, God knew how to furnish the inferior parts of His creation with most suitable laws."

Reply to Objection 1: This saying of the Apostle may be understood in two ways. First, so that a man is said to be under the law, through being pinned down thereby, against his will, as by a load. Hence, on the same passage a gloss says that "he is under the law, who refrains from evil deeds, through fear of punishment threatened by the law, and not from love of virtue." In this way the spiritual man is not under the law, because he fulfils the law willingly, through charity which is poured into his heart by the Holy Ghost. Secondly, it can be understood as meaning that the works of a man, who is led by the Holy Ghost, are the works of the Holy Ghost rather than his own. Therefore, since the Holy Ghost is not under the law, as neither is the Son, as stated above (A[4], ad 2); it follows that such works, in so far as they are of the Holy Ghost, are not under the law. The Apostle witnesses to this when he says (2 Cor. 3:17): "Where the Spirit of the Lord is, there is liberty."

Reply to Objection 2: The prudence of the flesh cannot be subject to the law of God as regards action; since it inclines to actions contrary to the Divine law: yet it is subject to the law of God, as regards passion; since it deserves to suffer punishment according to the law of Divine justice. Nevertheless in no man does the prudence of the flesh dominate so far as to destroy the whole good of his nature: and consequently there remains in man the inclination to act in accordance with the

eternal law. For we have seen above (Q[85], A[2]) that sin does not destroy entirely the good of nature.

Reply to Objection 3: A thing is maintained in the end and moved towards the end by one and the same cause: thus gravity which makes a heavy body rest in the lower place is also the cause of its being moved thither. We therefore reply that as it is according to the eternal law that some deserve happiness, others unhappiness, so is it by the eternal law that some are maintained in a happy state, others in an unhappy state. Accordingly both the blessed and the damned are under the eternal law.

OF THE NATURAL LAW (SIX ARTICLES)

We must now consider the natural law; concerning which there are six points of inquiry:

(1) What is the natural law?

(2) What are the precepts of the natural law?

(3) Whether all acts of virtue are prescribed by the natural law?

(4) Whether the natural law is the same in all?

(5) Whether it is changeable?

(6) Whether it can be abolished from the heart of man?

Whether the natural law is a habit?

Objection 1: It would seem that the natural law is a habit. Because, as the Philosopher says (Ethic. ii, 5), "there are three things in the soul: power, habit, and passion." But the natural law is not one of the soul's powers: nor is it one of the passions; as we may see by going through them one by one. Therefore the natural law is a habit.

Objection 2: Further, Basil [*Damascene, De Fide Orth. iv, 22] says that the conscience or "synderesis is the law of our mind"; which can only apply to the natural law. But the "synderesis" is a habit, as was shown in the FP, Q[79], A[12]. Therefore the natural law is a habit.

Objection 3: Further, the natural law abides in man always, as will be shown further on (A[6]). But man's reason, which the law regards, does not always think about the natural law. Therefore the natural law is not an act, but a habit.

On the contrary, Augustine says (De Bono Conjug. xxi) that "a habit is that whereby something is done when necessary." But such is not the natural law: since it is in infants and in the damned who cannot act by it. Therefore the natural law is not a habit.

I answer that, A thing may be called a habit in two ways. First, properly and essentially: and thus the natural law is not a habit. For it has been stated above (Q[90], A[1], ad 2) that the natural law is something appointed by reason, just as a proposition is a work of reason. Now that which a man does is not the same as that whereby he does it: for he makes a becoming speech by the habit of grammar. Since then a habit is that by which we act, a law cannot be a habit properly and essentially.

Secondly, the term habit may be applied to that which we hold by a habit: thus faith may mean that which we hold by faith. And accordingly, since the precepts of the natural law are sometimes considered by reason actually, while sometimes they are in the reason only habitually, in this way